

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 2069 By: Kern of the Senate
3 and
4 Townley of the House
5

6 An Act relating to game and fish; amending 29 O.S.
7 2021, Section 5-406, which relates to migratory
8 birds; defining terms; prohibiting the taking of
9 migratory game birds by certain methods; providing
10 exceptions; providing penalties for violations;
11 requiring revocation of certain licenses upon
12 conviction; requiring court to transmit certain
13 information; defining term; and providing an
14 effective date.

12 AUTHOR: Remove Representative Townley as principal House author and
13 substitute with Representative Archer.

14 AUTHORS: Add the following House coauthors: Townley, West (Josh),
15 and Stinson

16 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
17 and insert:

18 "An Act relating to nuclear energy; defining terms;
19 creating the Oklahoma Advanced Nuclear Energy Office;
20 stating purposes of Office; establishing certain
21 duties for the Office; prohibiting certain gifts;
22 prohibiting requirement that certain project be in a
23 specific location; authorizing the adoption of
24 certain rules; requiring Oklahoma Corporation
Commission promulgate certain rules; stating
Commission shall not be required to adopt certain
language; stating the constitutional or statutory
authority of Commission shall not be superseded;
requiring Governor appoint Director; listing
requirements for Director; listing duties of

1 Director; authorizing the hiring of staff; requiring
2 submission of certain strategic plan; authorizing the
3 hiring of a Nuclear Permitting Coordinator; requiring
4 coordinator have familiarity with certain processes;
5 listing duties of coordinator; requiring coordinator
6 provide certain assistance; requiring certain
7 documentation be kept and available to public upon
8 request; creating the Oklahoma Advanced Nuclear
9 Development Revolving Fund; stating type of fund;
10 stating content of fund; listing purpose of fund;
11 providing for expenditures; requiring the
12 establishment of certain grant program; requiring
13 certain actions be completed and submitted before
14 grants may be issued; requiring specific legislative
15 appropriations for grant issuance; providing details
16 on granting of funds; requiring applicants submit
17 certain information; prohibiting applicants from
18 receiving certain grants; requiring certain notice of
19 proposed grants; disallowing approval of certain
20 grants if disapproved by certain individuals;
21 authorizing extension of review; requiring certain
22 written agreement; detailing terms of written
23 agreement; limiting amount of grant awards;
24 authorizing certain reimbursement grants; listing
expenses that qualify for reimbursement; requiring
the showing proof of certain expenses; limiting
amount of reimbursement grants; authorizing the
promulgation of certain rules; requiring certain
permit for certain reimbursement grant; authorizing
the distribution of grants on a rolling basis;
stating process for distribution; authorizing grant
for completion of an operating nuclear reactor that
make certain interconnection; requiring the
establishment of certain procedures; requiring
certain application evaluation be made; listing
criteria for evaluation; requiring certain
information submitted be deemed confidential;
providing for codification; and declaring an
emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 10.10 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Advanced nuclear project" means an electric generation
6 facility that relies on an advanced nuclear reactor to generate
7 power, steam, or heat, a nuclear fuel cycle facility that supplies
8 advanced nuclear reactors, or associated technologies supporting the
9 advanced nuclear energy industry;

10 2. "Advanced nuclear reactor" means a range of nuclear reactor
11 technologies determined by the United States Regulatory Commission
12 to be either of generation III+ or generation IV, including large
13 light water reactors, small modular reactors, microreactors, and
14 nuclear cogeneration;

15 3. "Construction permit" means a permit issued by the
16 Regulatory Commission for the construction of:

- 17 a. a nuclear production or utilization facility, or
18 b. a research or test reactor that contributes to the
19 future commercialization of that research or test
20 reactor technology;

21 4. "Director" means the Director of the Advanced Nuclear Energy
22 Office;

23 5. "License" means a license issued by the Regulatory
24 Commission that authorizes the license holder to construct and

1 operate a nuclear power facility, such as a nuclear plant at a
2 specific site, with specified conditions;

3 6. "Office" means the Oklahoma Advanced Nuclear Energy Office
4 established under Section 2 of this act;

5 7. "Regulatory Commission" means the United States Nuclear
6 Regulatory Commission; and

7 8. "Utility Commission" means the Oklahoma Corporation
8 Commission.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 10.11 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. There is hereby created the Oklahoma Advanced Nuclear Energy
13 Office. The Office shall be an office administratively housed
14 within the Office of the Governor and shall be assigned to the
15 Oklahoma Secretary of Energy and Environment.

16 B. The purposes of the Office are to provide statutory and
17 regulatory readiness for advanced nuclear energy and to:

18 1. Provide strategic leadership for the advanced nuclear
19 reactor system in this state;

20 2. Promote the development of advanced nuclear reactors for
21 dispatchable electric generation while creating high-wage advanced
22 manufacturing jobs in this state;

1 3. Advance innovative nuclear energy generation technologies
2 while delivering safe, reliable, and clean energy solutions that
3 address the state's growing demand;

4 4. Enhance the state's energy security, foster economic growth,
5 and ensure the safety of future nuclear energy generation
6 development;

7 5. Identify barriers to the financial viability of nuclear
8 energy generation and regulatory and licensing complexities that
9 increase risk to developers of nuclear energy;

10 6. Leverage the expertise and capacity of institutions of
11 higher education, the nuclear energy industry, the industrial
12 manufacturing sector, and regulatory stakeholders to develop a
13 comprehensive strategic plan to ensure the development of advanced
14 nuclear energy and associated technologies in this state; and

15 7. Support the development of an advanced nuclear energy supply
16 chain and associated technologies in this state.

17 C. The Office shall:

18 1. Develop and propose a comprehensive statutory and regulatory
19 framework for advanced nuclear energy. The statutory and regulatory
20 framework developed by the Office shall be substantive and ready for
21 implementation;

22 2. Draft and recommend rules addressing areas of state
23 jurisdiction not preempted by the United States Nuclear Regulatory
24 Commission;

1 3. Coordinate with the Oklahoma Corporation Commission;

2 4. Identify any statutory gaps requiring legislative action;

3 and

4 5. Submit completed statutory and regulatory framework and
5 recommendations for advanced nuclear energy to the Governor,
6 President Pro Tempore of the Oklahoma State Senate, the Speaker of
7 the Oklahoma House of Representatives, and the Oklahoma Corporation
8 Commission, by December 1, 2027.

9 D. The Office may not accept a gift, grant, or loan from or
10 contract with an applicant for or a beneficiary of a grant provided
11 pursuant to this act.

12 E. The Office may not require an advanced nuclear project to be
13 located in a specific location.

14 F. The Office may promulgate rules as necessary to carry out
15 the provisions of this act.

16 G. The Oklahoma Corporation Commission shall promulgate rules
17 within its constitutional and statutory jurisdiction to implement
18 the regulatory framework provided by the Office. The Corporation
19 Commission shall not be compelled to adopt specific draft language
20 provided by the Office, but shall initiate rulemaking following
21 submission of completed regulatory framework. Nothing in this act
22 shall be construed to limit, impair, supersede, or otherwise affect
23 the constitutional or statutory authority of the Oklahoma
24 Corporation Commission over public utilities, electric generation

1 facilities, transmission providers, natural gas utilities, or any
2 other entity subject to its jurisdiction.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 10.12 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 A. The Governor shall appoint a Director of the Oklahoma
7 Advanced Nuclear Energy Office or may assign the duties of the
8 Director to the Oklahoma Secretary of Energy and Environment. The
9 Director shall serve at the pleasure of the Governor.

10 B. The Director shall have demonstrated:

- 11 1. Experience in the field of advanced nuclear energy; and
12 2. Executive and organizational ability.

13 C. The Director shall not have any direct or indirect interests
14 that substantially conflict with the Director's duties.

15 D. The Director shall:

- 16 1. Manage the affairs of the Office;
17 2. Administer programs established by this act; and
18 3. Establish appropriate milestones and standards to ensure
19 proper use of money pursuant to this act.

20 E. The Director may hire staff as necessary to implement the
21 duties of the Office pursuant to this act.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 10.13 of Title 74, unless there
24 is created a duplication in numbering, reads as follows:

1 Not later than December 1 of each even-numbered year, the
2 Director of the Oklahoma Advanced Nuclear Energy Office shall submit
3 to the Governor, the President Pro Tempore of the Oklahoma State
4 Senate, and the Speaker of the Oklahoma House of Representatives a
5 strategic plan for furthering the goals, purposes, and objectives
6 established by this act.

7 SECTION 5. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 10.14 of Title 74, unless there
9 is created a duplication in numbering, reads as follows:

10 A. The Director of the Oklahoma Advanced Nuclear Energy Office
11 may employ a Nuclear Permitting Coordinator to assist businesses
12 throughout the nuclear energy permitting and regulatory process.

13 B. A Nuclear Permitting Coordinator shall have a demonstrated
14 familiarity with the permitting and regulatory process in this
15 state.

16 C. The Nuclear Permitting Coordinator shall:

17 1. Act as a single point of contact for stakeholders during the
18 nuclear energy permitting and regulatory process;

19 2. Identify active or likely siting opportunities and required
20 permits and approvals for nuclear energy generation sites and key
21 personnel; and

22 3. Provide guidance for regulated persons navigating local,
23 state, and federal regulations for nuclear energy generation
24 facilities.

1 D. The Nuclear Permitting Coordinator shall make any assistance
2 provided under this section equally available to all businesses
3 engaged in the nuclear energy permitting and regulatory process.

4 E. The Nuclear Permitting Coordinator shall document all
5 activities carried out in the provision of assistance under this
6 section and make that information available to the public on
7 request.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 10.15 of Title 74, unless there
10 is created a duplication in numbering, reads as follows:

11 There is hereby created in the State Treasury a revolving fund
12 for the Oklahoma Advanced Nuclear Energy Office, established under
13 Section 2 of this act, to be designated the "Oklahoma Advanced
14 Nuclear Development Revolving Fund". The fund shall be a continuing
15 fund, not subject to fiscal year limitations and shall consist of
16 such sources as may be provided by law and any available federal
17 funding. All monies accruing to the credit of the fund shall be
18 budgeted and expended by the Oklahoma Advanced Nuclear Energy Office
19 for the purposes provided by this section. No monies may be
20 expended absent a specific legislative authorization. Subject to
21 the availability of funding, the Oklahoma Advanced Nuclear Energy
22 Office shall utilize the fund for the restricted purposes of
23 providing reimbursement-based grants to eligible businesses,
24 nonprofit organizations, and governmental entities, including

1 institutions of higher education, through the programs established
2 in this act and to pay for reasonable and necessary costs for staff
3 support necessary to facilitate the work of the Oklahoma Advanced
4 Nuclear Energy Office. Expenditures from the fund shall be made
5 upon warrants issued by the State Treasurer against claims filed as
6 prescribed by law with the Director of the Office of Management and
7 Enterprise Services for approval and payment.

8 SECTION 7. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 10.16 of Title 74, unless there
10 is created a duplication in numbering, reads as follows:

11 A. The Oklahoma Advanced Nuclear Energy Office shall establish
12 grant programs under this act and the Director shall administer
13 those programs. However, grants may not be awarded until the
14 regulatory framework required by Section 2 of this act has been
15 completed and submitted and the Oklahoma Corporation Commission has
16 promulgated necessary rules within its jurisdiction.

17 B. The Office may provide a grant, subject to the availability
18 of funds specifically appropriated by the Legislature, pursuant to
19 this act only to reimburse expenses paid by a recipient using the
20 recipient's own funds. No grant shall be awarded absent a specific
21 legislative appropriation for that fiscal year. An applicant for a
22 grant under the provisions of this act may have received financial
23 assistance or incentives from a local, state, or federal source, but
24 the Office may not provide a grant pursuant to this act to reimburse

1 expenses paid by a recipient or the recipient's project partner
2 using financial assistance or incentives from the local, state, or
3 federal source. An applicant shall provide the Office with detailed
4 information regarding any financial assistance or incentives
5 requested or received for the project for which it is requesting
6 grant funds.

7 C. An applicant that has received state-appropriated money for
8 an advanced nuclear reactor is not eligible to receive a grant under
9 Section 9 of this act.

10 D. The Office shall submit to the President Pro Tempore of the
11 Oklahoma State Senate and the Speaker of the Oklahoma House of
12 Representatives a notice of each grant the Office proposes to
13 approve. The Office may not approve the grant if either of those
14 officers submit a written communication to the Office disapproving
15 the grant on or before the thirtieth day after the date the Office
16 submits the notice of the proposed grant to those officers. The
17 President Pro Tempore of the Oklahoma State Senate or Speaker of the
18 Oklahoma House of Representatives may extend the review deadline for
19 an additional fourteen (14) days by submitting a written notice to
20 that effect to the Office before the expiration of the initial
21 review period.

22 E. Before awarding a grant pursuant to this act, the Office
23 shall enter into a written agreement with the grant applicant. A
24 written agreement under this subsection shall:

1 1. Specify benchmarks and milestones for the completion of the
2 project for which the grant is provided; and

3 2. Require the grant recipient to repay to the state any money
4 received from the grant if the recipient fails to reach the
5 specified benchmarks.

6 F. The Office may not during a state fiscal year award out of
7 money appropriated for grants pursuant to this act a total amount
8 greater than:

9 1. Twenty percent (20%) of the appropriated money for grants
10 provided under Section 8 of this act; and

11 2. Eighty percent (80%) of the appropriated money for grants
12 provided under Section 9 of this act.

13 SECTION 8. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 10.17 of Title 74, unless there
15 is created a duplication in numbering, reads as follows:

16 A. The Oklahoma Advanced Nuclear Energy Office may, subject to
17 the availability of funds specifically appropriated by the
18 Legislature, provide a reimbursement grant from the Oklahoma
19 Advanced Nuclear Development Revolving Fund, created in Section 6 of
20 this act, pursuant to this section for the expenses associated with
21 or required for initial development of an advanced nuclear project
22 in this state. However, grants may not be awarded until the
23 regulatory framework required by Section 2 of this act has been
24 completed and submitted and the Oklahoma Corporation Commission has

1 promulgated necessary rules within its jurisdiction. No grant shall
2 be awarded absent a specific legislative appropriation for that
3 fiscal year.

4 B. Expenses that qualify for reimbursement under this section
5 are limited to expenses attributable or allocable to:

6 1. Technology development, including university technology
7 development;

8 2. Feasibility studies;

9 3. Site planning, including conceptual site-specific
10 engineering studies;

11 4. Front-end engineering design;

12 5. Site and environmental characterization;

13 6. Regulatory commission early site permit work;

14 7. Preparation of the construction permit or license
15 application to the Regulatory Commission;

16 8. Developing manufacturing capacity and readiness;

17 9. Fuel processing, manufacturing, and fabrication activities
18 essential to the fuel cycle supply;

19 10. Preparation of local, state, and nonregulatory commission
20 federal permits; and

21 11. Regulatory Commission licensing fees.

22 C. To be eligible for a reimbursement grant under this section,
23 an applicant shall provide with an application proof of incurred
24 expenses described by subsection B of this section.

1 D. A grant provided under this section may not exceed the
2 lesser of:

3 1. Fifty percent (50%) of the amount of qualifying expenses
4 associated with the project; or

5 2. Twelve Million Five Hundred Thousand Dollars
6 (\$12,500,000.00).

7 E. The Office by rule shall establish procedures for the
8 application for and provisions of a grant pursuant to this section.

9 SECTION 9. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 10.18 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. The Oklahoma Advanced Nuclear Energy Office may provide a
13 reimbursement grant, subject to the availability of funds
14 specifically appropriated by the Legislature, from the Oklahoma
15 Advanced Nuclear Development Revolving Fund, created in Section 6 of
16 this act, pursuant to this section for expenses associated with the
17 construction of an advanced nuclear project in this state. However,
18 grants may not be awarded until the regulatory framework required by
19 Section 2 of this act has been completed and submitted and the
20 Oklahoma Corporation Commission has promulgated necessary rules
21 within its jurisdiction. No grant shall be awarded absent a
22 specific legislative appropriation for that fiscal year.

23 B. Expenses that qualify for reimbursement under this section
24 are limited to expenses associated with:

1 1. The United States Nuclear Regulatory Commission's review of
2 the construction permit or license application;

3 2. Procurement and development of long-lead components; or

4 3. Construction activities, including the manufacture,
5 fabrication, quality assurance, placement, erection, installation,
6 modification, inspection, or testing of an advanced nuclear project.

7 C. To be eligible for a reimbursement grant under this section,
8 an applicant must provide with an application proof of incurred
9 expenses described by subsection B of this section.

10 D. A grant provided under this section may not exceed the
11 lesser of:

12 1. Fifty percent (50%) of the amount of qualifying expenses
13 associated with the project; or

14 2. One Hundred Twenty Million Dollars (\$120,000,000.00).

15 E. The Office by rule shall establish procedures for the
16 application for and provisions of a grant under this section.

17 F. The Office may not provide a reimbursement grant for a
18 project under this section until the Regulatory Commission has
19 docketed a construction permit or license application for the
20 project.

21 G. The Office by rule shall establish a process to distribute
22 the proceeds of each grant awarded under this section to the grant
23 recipient on a rolling basis for qualifying expenses. The process
24 shall include milestones associated with:

1 1. The Regulatory Commission's permitting process; and

2 2. The recipient's financial investment decisions relating to
3 the project.

4 SECTION 10. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 10.19 of Title 74, unless there
6 is created a duplication in numbering, reads as follows:

7 A. The Oklahoma Advanced Nuclear Energy Office may provide a
8 grant, subject to the availability of funds specifically
9 appropriated by the Legislature, pursuant to this act for the costs
10 associated with the completion of an operational advanced nuclear
11 reactor in this state that is interconnected with the regional
12 transmission operator power grid. However, grants may not be
13 awarded until the regulatory framework required by Section 2 of this
14 act has been completed and submitted and the Oklahoma Corporation
15 Commission has promulgated necessary rules within its jurisdiction.
16 No grant shall be awarded absent a specific legislative
17 appropriation for that fiscal year.

18 B. The Office, in consultation with the Oklahoma Corporation
19 Commission, by rule shall establish the amount of a grant the Office
20 shall provide under this section on a per megawatt basis according
21 to the generation capacity of the advanced nuclear reactor.

22 C. The Office, in consultation with the Oklahoma Corporation
23 Commission, by rule shall establish procedures for:

24 1. The application for and award of a grant under this section;

2. The administration of the grant program; and

3. Providing grants according to a tiered system based on the amount of electricity in megawatts provided to the regional transmission operator grid by an advanced nuclear reactor.

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10.20 of Title 74, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Advanced Nuclear Energy Office shall evaluate each application for a grant pursuant to this act based upon the project's potential benefit to this state and the grant applicant's:

1. Quality of services and management;

2. Efficiency of operations;

3. Access to resources essential for operating the project for which the grant is requested, such as land, water, and reliable infrastructure, as applicable;

4. Application for or docketing of a permit or license with the United States Nuclear Regulatory Commission; and

5. Ability to repay the grant if project benchmarks are not met.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10.21 of Title 74, unless there is created a duplication in numbering, reads as follows:

1 Information submitted to the Oklahoma Advanced Nuclear Energy
2 Office in an application for a grant pursuant to this act is
3 confidential and not subject to disclosure.

4 SECTION 13. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval."

8 Passed the House of Representatives the 5th day of May, 2026.

9

10

11 _____
Presiding Officer of the House of
12 Representatives

13 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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1 ENGROSSED SENATE
2 BILL NO. 2069

By: Kern of the Senate

3 and

4 Townley of the House
5

6 An Act relating to game and fish; amending 29 O.S.
7 2021, Section 5-406, which relates to migratory
8 birds; defining terms; prohibiting the taking of
9 migratory game birds by certain methods; providing
10 exceptions; providing penalties for violations;
11 requiring revocation of certain licenses upon
12 conviction; requiring court to transmit certain
information; defining term; and providing an
effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 14. AMENDATORY 29 O.S. 2021, Section 5-406, is
15 amended to read as follows:

16 Section 5-406. A. As used in this section:

17 1. "Baiting" means the direct or indirect placing, exposing,
18 depositing, distributing, or scattering of salt, grain, or other
19 feed that could serve as a lure or attraction for migratory game
20 birds to, on, or over any areas where hunters are attempting to take
21 them;

22 2. "Baited area" means any area on which salt, grain, or other
23 feed has been placed, exposed, deposited, distributed, or scattered,
24 if that salt, grain, or other feed could serve as a lure or

1 attraction for migratory game birds to, on, or over areas where
2 hunters are attempting to take them. Any such area will remain a
3 baited area for ten (10) days following the complete removal of all
4 such salt, grain, or other feed;

5 3. "Manipulation" means the alteration of natural vegetation or
6 agricultural crops by activities that include, but are not limited
7 to, mowing, shredding, discing, rolling, chopping, trampling,
8 flattening, burning, or applying herbicide treatments. The term
9 manipulation does not include the distributing or scattering of
10 seed, grain, or other feed after removal from or storage on the
11 field where grown;

12 4. "Migratory game birds" means those migratory birds included
13 in the terms of conventions between the United States and any
14 foreign country for the protection of migratory birds, for which
15 open seasons are prescribed in this subsection and which belong to
16 the following families:

- 17 a. Anatidae (ducks, geese, including brant, and swans),
- 18 b. Columbidae (doves and pigeons),
- 19 c. Gruidae (cranes),
- 20 d. Rallidae (rails, coots, and gallinules), and
- 21 e. Scolopacidae (woodcock and snipe);

22 5. "Normal agricultural operation" means a normal agricultural
23 planting, harvesting, post-harvest manipulation, or agricultural
24 practice that is conducted in accordance with official

1 recommendations of State Extension Specialists of the Cooperative
2 Extension Service of the United States Department of Agriculture;
3 and

4 6. "Other feed" means any simulated, synthetic, imitation, or
5 artificial products made from plastic, rubber, foam, or other
6 unnatural ingredients to resemble salt or grain, as well as any
7 other edible feed that could lure or attract game birds that is not
8 defined as a salt or grain.

9 B. No person may hunt, capture or kill any species of migratory
10 birds, including but not limited to ducks, brant, and geese, except
11 as provided in the Treaties of the United States and Acts of
12 Congress relating to such endeavors, and as annually fixed by the
13 federal department in control of migratory birds and the Commission.

14 C. 1. No person shall take migratory game birds by the aid of
15 baiting, or on or over any baited area, where a person knows or
16 reasonably should know that the area is or has been baited.

17 2. Nothing in this section prohibits the taking of any
18 migratory game birds except waterfowl, coots, and cranes, on and
19 over lands or areas that are not otherwise baited areas, and where
20 grain or other feed has been distributed or scattered solely as the
21 result of manipulation of an agricultural crop or other feed on the
22 land where grown, or solely as the result of a normal agricultural
23 operation.

1 D. 1. Any person convicted of violating the provisions of this
2 section shall, upon conviction, be guilty of a misdemeanor
3 punishable by a fine not less than Two Hundred Fifty Dollars
4 (\$250.00) nor more than Seven Hundred Fifty Dollars (\$750.00), or by
5 imprisonment in the county jail for a period not to exceed ten (10)
6 days, or by both such fine and imprisonment. Any person convicted
7 of a second or subsequent violation of the provisions of this
8 section shall be punishable by a fine not less than Seven Hundred
9 Fifty Dollars (\$750.00) nor more than One Thousand Five Hundred
10 Dollars (\$1,500.00), or by imprisonment in the county jail for a
11 period not to exceed ten (10) days, or by both such fine and
12 imprisonment.

13 2. Any hunting or fishing license issued to a person by the
14 Department of Wildlife Conservation shall be automatically revoked
15 upon conviction of the person for violating the provisions of this
16 section. The revocation shall be for a period set by the court of
17 not less than one (1) year nor more than ten (10) years. If the
18 court does not set a period, the revocation shall be for one (1)
19 year from the date the conviction becomes final. During the period
20 of revocation, the Department shall not issue the person a hunting
21 or fishing license. If the court does not set a revocation period,
22 the Department shall not issue the person a license within one (1)
23 year of the conviction.

1 3. The hunting or fishing license of any person convicted of a
2 second or subsequent violation of the provisions of this section
3 shall be automatically revoked upon conviction of the person for
4 violating the provisions of this section. The revocation shall be
5 for a period set by the court of not less than three (3) years nor
6 more than ten (10) years. If the court does not set a period, the
7 revocation shall be for three (3) years from the date the conviction
8 becomes final. During the period of revocation, the Department
9 shall not issue the person a hunting or fishing license. If the
10 court does not set a revocation period, the Department shall not
11 issue the person a license within three (3) years of the conviction
12 of the person pursuant to this section.

13 4. A person who has a license or permit revoked pursuant to
14 this section shall surrender the revoked license or permit to the
15 court, or the court may order the defendant to surrender the license
16 or permit directly to an officer from the Department of Wildlife
17 Conservation present at the hearing. If the license or permit is
18 surrendered to the court, the court shall send the Department the
19 revoked license. The court shall also send the Department a copy of
20 the judgment of conviction. In lieu of sending a paper copy of the
21 documents and information required by this subsection, the court
22 clerk may transmit the conviction information by using an electronic
23 method authorized by the Department.

5. For the purposes of this section, "conviction" shall include a plea of guilty or nolo contendere to an offense or the imposition of deferred adjudication for an offense.

SECTION 15. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives